

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK----- X
SAIGE NUZZO,

Plaintiff,

-against-

NYPD POLICE OFFICER VICTOR A. HICIANO, Shield
No. 13496 and NYPD POLICE OFFICERS JOHN DOES
NUMBERS ONE THROUGH TEN,Defendants.
----- X**SUMMONS**

Index No.:

The Basis of Venue is:
Location of IncidentPlaintiff designates New York
County as the place of trial.**To the above named Defendants:**

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 3, 2022

Yours, etc.

Cass Luskin

Cass Luskin, Esq.

Shulman-Hill, PLLC

Attorneys for Plaintiff

1 State Street Plaza

15th Floor

New York, New York 10004

(212) 203-1090

TO: NYPD Police Officer Victor Hiciano, Shield No. 13496 – Youth Strategies Division – 415
State Road, Breezy Point, New York 11697

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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Plaintiff,

-against-

NYPD POLICE OFFICER VICTOR A. HICIANO, Shield
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Defendants.

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

----- X

Plaintiff Saige Nuzzo, by her attorneys, Shulman and Hill, PLLC, as and for her Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On September 19, 2020, at approximately 3:00 p.m., Plaintiff was present in the vicinity of 46th Street and Broadway Avenue, New York, New York, when the defendant Police Officers falsely arrested and detained. Plaintiff was deprived of her constitutional rights when the individual defendants unlawfully stopped, detained, falsely imprisoned and used excessive force against Plaintiff, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff Saige Nuzzo is a resident of the state of New York.

3. NYPD Police Officer Victor Hiciano, Shield No. 13496, is and was at all times relevant herein an Officer with the New York City Police Department.

4. NYPD Police Officer Victor Hiciano, Shield No. 13496, is being sued in their individual and official capacity.

5. At all times relevant herein, NYPD Police Officer Victor Hiciano, Shield No. 13496, was assigned to Midtown Precinct South of the NYPD.

6. Currently NYPD Police Officer Victor Hiciano, Shield No. 13496, is assigned to NYPD's Youth Strategies Division.

7. NYPD Police Officers John Does Numbers One through ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

8. NYPD Police Officers John Does Numbers One through ten are being sued in their individual and official capacities.

9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

10. The City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

11. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

12. On September 19, 2020, at approximately 3:00 p.m., Plaintiff was present in the vicinity of 46th Street and Broadway Avenue, New York, New York, when the defendant Police Officers falsely arrested and detained Plaintiff.

13. Plaintiff was lawfully exercising her 1st Amendment Rights at an march in Times Square.

14. The march was against Immigrations and Customs Enforcement ("ICE"), and in particular gruesome allegations that a doctor at an ICE facility in Georgia had been performing unwanted hysterectomies and other gynecological procedures on female detainees thereby leaving them sterile.

15. Plaintiff watched as the march was “kettled” by responding and defendant NYPD officers.

16. Kettling (also known as containment or corralling) is a police tactic for controlling large crowds during demonstrations or protests. It involves the formation of large cordons of police officers who then move to contain a crowd within a limited area. Protesters either leave through an exit controlled by the police, leave through an uncontrolled gap in the cordons, or are contained, prevented from leaving, and arrested.

17. Once the kettling began, Plaintiff decided to leave the march to avoid adverse contact with law enforcement, despite the fact that she was not breaking any law, ordinance, regulation, or administrative code.

18. As Plaintiff left the march, she was grabbed without warning or reason by defendant officers.

19. Defendant Officers then unlawfully handcuffed Plaintiff and searched her person.

20. In the course of arresting Plaintiff, Defendant Officers used excessive force against Plaintiff, including roughly grabbing her arms, shoving her around, and applying the handcuffs over-tightly to her wrists.

21. As a result of this force, Plaintiff suffered bruising to both upper arms and wrists.

22. Plaintiff was transported to the 1 Police Plaza where she was placed in a holding cell.

23. Plaintiff remained at the 1 Police Plaza for about 10 hours.

24. While at 1 Police Plaza, Plaintiff spoke to her arresting officer, Defendant Officer Hiciano.

25. Defendant Officer Hiciano was merely an officer that Plaintiff was “handed off” to, and did not himself observe plaintiff during the protest.

26. Defendat Officer Hiciano told Plaintiff that she was being given three different summonses for disorderly conduct, including one relating to taking photographs.

27. When Plaintiff objected and specifically noted that Defendant Officer Hiciano had never seen her do anything wrong and she did not at any time take photographs, Defendant Officer Hiciano replied: “That’s what legal said to give you.”

28. Defendant Officer Hiciano then said that it was either disorderly conduct “or resisting arrest, you pick.”

29. Plaintiff was then released after being given a Desk Appearance Ticket to appear in court on December 18, 2020.

30. The Desk Appearance Ticket was not docketed, on information and belief having been declined to be prosecuted by the New York County District Attorney's Office.

31. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

32. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause, unlawfully fingerprinted, photographed and searched, and unlawfully detained.

33. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably assaulting, battering, and using excessive force against Plaintiff.

FIRST CAUSE OF ACTION
Unlawful Stop, Question, and Search

34. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

35. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

36. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

37. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the United States Constitution.

SECOND CAUSE OF ACTION
Violation of Fourth and Fourteenth Amendment Rights:
Unlawful Seizure and Deprivation of Liberty

38. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

39. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion

and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

40. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

THIRD CAUSE OF ACTION

False Imprisonment

41. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

42. The acts and conduct of the defendants constitute false arrest and false imprisonment. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

43. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the United States Constitution.

44. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Failure to Intervene

45. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

46. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

47. Defendants failed to intervene to prevent the unlawful conduct described herein.

48. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, she was put in fear of her safety, and she was humiliated and subject to other physical constraints.

49. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the United States Constitution.

50. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights: Excessive Force

51. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

52. The use of excessive force by defendants by, amongst other things, roughly handcuffing, grabbing and twisting Plaintiff's wrist and arms constituted objectively unreasonable physical seizures of Plaintiff in violation of her rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SIXTH CAUSE OF ACTION

Violation of Fourth And Fourteenth Amendment Rights: Denial of Right to Fair Trial/Due Process

53. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

54. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

55. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

56. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.

57. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

58. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

59. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

60. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

61. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: economic, emotional, and psychological injuries.

JURY DEMAND

62. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff SAIGE NUZZO demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
May 3, 2022

By: Cass Luskin
Cass Luskin, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: NYPD Police Officer Victor Hiciano, Shield No. 13496 – Youth Strategies Division – 415
State Road, Breezy Point, New York 11697

ATTORNEY'S VERIFICATION

CASS LUSKIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
May 3, 2022



CASS LUSKIN